

6. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing on Line 18. If the tentative ruling is not contested, this CMC is continued to November 23, 2026 at 8:30 a.m. The Parties are ordered to meet and confer to discuss Alternative Dispute Resolution and to provide a further update to the Court on their efforts to resolve this case.

Law & Motion

7. 9:00 AM CASE NUMBER: C23-02239

CASE NAME: DAWN JANOWSKI VS. J B MECHANICAL, INC.

***HEARING ON MOTION IN RE: FINAL APPRIVAL OF CLASS ACTION & PAGA CLAIM**

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Dawn Janowski's ("Plaintiff") Motion for Final Approval of PAGA Settlement and Attorney's Fees against Defendant JB Mechanical Inc. ("Defendant") is **granted** as set forth herein. No appearance is required at the hearing on May 27, 2026.

Background

On September 6, 2023, Plaintiff filed a class action complaint against Defendant alleging seven causes of action related to labor law violations, including failure to provide meal and rest periods, failure to pay wages and overtime, failure to provide accurate wage statements, failure to timely pay final wages, failure to indemnify, and unfair competition. On November 9, 2023, Plaintiff Janowski filed a First Amended Complaint adding a claim for Civil Penalties under Labor Code § 2698. Plaintiff Janowski provided timely PAGA notice to Defendants and the LWDA on September 6, 2023, followed by a revised notice on September 14, 2023. After the LWDA did not express interest in investigating, Plaintiff filed the First Amended Complaint with the PAGA claim.

The parties commenced mediation, which resulted in a Gross Settlement Amount of \$600,000.00 on a class-wide and PAGA representative basis. Defendants will fund the Gross Settlement Amount and their share of payroll taxes in two installments: \$350,000.00 to be paid 30 days after Court approval, and \$250,000.00 to be paid 90 days after the first installment. The Class Period is defined as September 6, 2019, through April 9, 2025. Aggrieved Employees are hourly, non-exempt employees who worked for Defendants in California during the PAGA Period (September 6, 2022, through January 13, 2026).

The Class consists of named Plaintiffs and all hourly, non-exempt employees who worked for Defendants in California during the Class Period. It is an opt-out class with no claim form requirement, and no residual will revert to Defendants. The highest estimated Individual Class Payment is

approximately \$5,871.01, the average is approximately \$1,662.82, and the lowest is approximately \$20.11.

Additional disbursements from the Gross Settlement Amount include: Class Counsel Fees of \$200,000.00; Class Counsel Litigation Expenses of \$18,510.90; Administration Expenses of \$7,250.00; Class Representatives' Service Awards of \$15,000.00 (\$7,500 each to Plaintiffs Janowski and Webb-Turner); and PAGA Penalties of \$30,000 (with \$22,500 going to LWDA). After these deductions, the Net Settlement Amount to be distributed to Participating Class Members is estimated to be \$328,239.10.

Analysis and Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees and Costs

Plaintiff seeks thirty percent (30%) of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is

extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (Id., at 505.)

Counsel has prepared a detailed declaration explaining the fee methodology, the experience of counsel, and other factors, including the *Lodestar* factors. The Court finds that the fees are reasonable and approved.

Litigation costs of \$18,510.90 are reasonable and are approved. Settlement administration costs of \$7,250.00 are reasonable and are approved. The requested representative payments of \$15,000 for plaintiff class representatives (Janowski and Webb-Turner) are reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiffs Janowski and Webb-Turner attest, in their declarations, that they spent at least 25 hours of their time on the case, and accepted undefined “risk” by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Conclusion and Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate, with the small reduction in the attorney’s fees. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order.
3. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
4. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. The compliance hearing will be held in Department 16, the Honorable Benjamin Reyes. Counsel are directed to contact the court clerk to calendar a Compliance Hearing. If Counsel’s compliance statement is acceptable, then the Court may issue an unreported minute order releasing the 5% retention of fees prior to the compliance hearing.
6. No appearance is required at the hearing on May 27, 2026.

8. 9:00 AM CASE NUMBER: C24-01041
CASE NAME: ADRIAN VASQUEZ VS. GOLDEN GATE MEAT COMPANY, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: VASQUEZ, ADRIAN

TENTATIVE RULING:

Summary

Plaintiff Adrian Vasquez’s Motion for Preliminary Approval of Class Action Settlement with Defendants Golden Gate Meat Company, Inc. (“GGMC”), Jimi-Z Offenbach, Patricia A. Offenbach, and Justin Offenbach (“Defendants”) is approved as set forth herein. No appearance is required at the